

23STCV03290 23STCV03290

County: los-angeles

Division: Civil Law and Motion

Department: 510

Hearing date: 2026-09-17

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Case Number: 23STCV03290 Hearing Date: September 17, 2026 Dept: 510

No.

12 - Guillermo Alamilla Canul v. Reiko Durwood

Plaintiff's Motion for Attorney Fees

Plaintiff Guillermo Alamilla Canul moves

for a total of \$1,106,085 in fees and \$65,041.20 in costs.

Evidentiary

Objections

Defendants assert 24 objections to

Plaintiff's evidence. Objection nos. 2, 3, 6, 8, 12, 15 and 20 are sustained

based on hearsay and lack of foundation/personal knowledge. Objection nos. 4, 5,

9, 10, 18 and 19 are sustained based on improper legal conclusion. The

remaining objections are overruled.

Timeliness

Plaintiff initially attempted to file his

motion on the last day of the 60-day deadline to file the fee motion—July 31,

2026. The clerk rejected the motion for failure to reserve a hearing date

before filing. As a result, Plaintiff filed and served the motion after the

60-day deadline: he filed the motion on August 5, 2026, and ultimately served

the motion on August 13, 2026. The hearing on the motion was continued from

August 31, 2026, to today's date to allow proper time for Defendant to file an

opposition.

Defendant

argues that the instant motion is untimely and that the Court should deny it in its entirety. The Court declines to do so. Plaintiff's failure to timely file the fee motion was based on inadvertent error. Further, the 60-day deadline to file a fee motion is not jurisdictional. Courts have "substantial latitude in allowing fees to be awarded without strict compliance with statutory temporal and procedural limitations." (Gunlock Corp. v. Walk on Water, Inc. (1993) 15 Cal.App.4th 1301, 1305.) Because late service of this motion did not prejudice Defendant, the Court will consider the motion on the merits.

Defendant

requests that the Court, in the alternative, require Plaintiff to file a motion to extend the deadline to file the fee motion for good cause under California Rules of Court, rule 3.1702(b)(1). Defendant claims "[t]hat motion would let the Court weigh Plaintiff's asserted good cause against the prejudice to Durwood from the late request, and better assess whether Plaintiff purposefully waited to file until after Durwood's trial counsel withdrew and whether he can show good cause for not promptly seeking an extension after Federal Express returned the package as undeliverable." (Am. Opp., at p. 8.) The Court declines to explore Defendant's speculative assertions that Plaintiff waited to serve the fee motion after Defendant's trial counsel withdrew from the case. First, as Plaintiff points out in reply, Plaintiff himself opposed Defense counsel's motion to be relieved as counsel on the grounds that the trust would proceed unrepresented during post-trial motion practice. Second, Plaintiff filed the fee motion on the last day of the deadline, as is common for many practicing attorneys. Defendants present no evidence that would allow the Court to find that the timing of Plaintiff's motion was contemplated in bad faith.

Attorney

Fees

Plaintiff

seeks \$1,106,085 in total fees. This includes 580 hours incurred on the case with a 2.0 multiplier, and 25.3 hours incurred on the instant motion with no multiplier.

On

May 26, 2026, the Court entered judgment in favor of Plaintiff for \$488,237.01 following a jury trial on multiple violations of the Labor Code. There is no dispute that Plaintiff is the prevailing party entitled to attorney fees under

various sections of the Labor Code.

A. Hourly

Rates

Plaintiff requests fees for time spent on the case by three licensed attorneys—Douglas Silverstein, Steven Kroll, and Lauren Morrison—and one paralegal. Plaintiff presents evidence of the attorneys' qualifications and experience. (Silverstein Decl., ¶¶ 2-24; Kroll Decl., ¶¶ 5-9; Morrison Decl., ¶¶ 2-7.) They bill \$1,200, \$950, and \$800 per hour respectively. The paralegal rate is \$250 per hour.

Based on its knowledge of the legal market, its review of the credentials and experience of Plaintiff's attorneys, and the particular tasks performed by counsel, the Court finds Plaintiff's claimed hourly rates reasonable.

B. Hours

Plaintiff presents billing records showing \$565,640 for 605.3 hours of work. (Silverstein Decl., Exs. B-C; Kroll Decl., Ex. A; Morrison Decl., Ex. A.) In determining what constitutes a reasonable fee, the court ordinarily begins with the lodestar, that is, "the number of hours reasonably expended multiplied by the reasonable hourly rate." (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) In calculating the lodestar, the court must determine whether the tasks performed by an attorney were necessary and whether the amount of time billed for each task was reasonable. (Baxter v. Bock (2016) 247 Cal.App.4th 775, 793.)

Plaintiff's counsel submitted multiple declarations attesting to the reasonableness of the attorney fees sought in his billing records. In opposition, Defendant does not dispute the reasonableness of Plaintiff's counsel's hours incurred, stating "Durwood has not challenged the number of hours Plaintiff's counsel says is reasonable, and thus, to the extent that Durwood's prior counsel might have caused Plaintiff's counsel to spend more time on this case with motions or discovery, the number of hours in the lodestar would be reasonable compensation." (Opp., at p. 13.)

The Court has reviewed the time entries and likewise finds that all hours were reasonable and necessary to the litigation.

C. Multiplier

Plaintiff moves for a 2.0 multiplier. Multipliers may be awarded based on factors including "(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award." (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) After considering all relevant factors, the Court finds a lodestar enhancement is not warranted. This case did not involve novel or difficult questions. Plaintiff's counsel did an admirable job presenting Plaintiff's case and addressing the myriad issues raised by the defendants, but did not demonstrate exceptional skill in litigating the case. In addition, counsel's hourly rates adequately account for representation on contingency.

Costs

Plaintiff also requests \$65,041.20 in costs as reflected in his memorandum of costs filed on June 16, 2026. Because Defendant did not file a motion to strike or tax costs, Plaintiff is entitled to these costs. The clerk should have already entered this cost award.

Disposition

Plaintiff

Guillermo Alamilla Canul's motion for attorney fees is granted in part. Plaintiff shall recover \$565,640 in attorney fees plus \$65,041.20 in costs from Defendants.